

OREGON CITY ENTERPRISE

FIFTY-SIXTH YEAR NO. 49.

OREGON CITY, OREGON, FRIDAY, DECEMBER 8, 1922

ESTABLISHED 1886

HIGHWAY BODY TO CHANGE DATES TO AID BRIDGE PLANS

State Highway Body To Defer Formal Opening Til Time Set By Oregon City And Will Alter Day of Meeting.

TROUBLE OVER EARLY TRAFFIC IS SCOUTED

Use of Span By Highschool Students Not Regarded As Serious Commission Feels.

In deference to Oregon City and West Linn and the plans made for the holding of the opening of the bridge celebration here December 28, the state highway commission has changed the date of its December meeting. The commission voted to open the bridge December 27 and was to meet on the following date. In order not to conflict with the plans for the two municipalities for the holding of the ceremonial the dates of the highway session and the opening date set by that body for the span here have been reversed.

The commission together with other state officials, will be in Oregon City on the 28th to take part in the dedication.

Little attention, it was indicated yesterday, will be paid by the commission or either of the cities to the fact that the use of the bridge by West Linn students en route to the recent football game with Oregon City, raised a technicality regarding the acceptance of the span.

It is maintained by some attorneys that the legality of the acceptance of the bridge by the state is raised through the fact that the bridge was opened to traffic.

The unofficial opening of the span to traffic, it is said, may serve as a technical point upon which Oregon City and West Linn may seek to avoid payment of their share of the construction costs; or, on the other hand, may place the entire burden of cost upon the community whose officers authorized opening the span— if such authorization was given.

Attorneys say that the bridge, barricaded as it is now, is not public property, not having been accepted by the state from the contractors, and not having yet been dedicated to public use. Recent removal of the barricades at one end, however, by those in charge of the maintenance of the bridge to the public, it is declared—even though this opening to traffic was not the act of the state highway commission, which is supposedly in control of the structure.

A change in the entire agreement for paying for the span could grow out of the action, it is indicated if it were found that the guard who allowed passage, was in effect an official of one of the two cities. No steps to this effect, however, are expected by any of the parties to the bridge contract, and no concern over the matter is felt.

War Contractors Named In Suits to Recover Big Sum

WASHINGTON, D. C. Dev. 4.—Six additional suits seeking recovery of large sums alleged to have been misapplied in construction of the wartime army cantonments were filed today in as many cities by representatives of the department of justice. The six actions sought to recover \$29,000,000 and brought the total claimed by the government from war contractors to more than \$50,000,000.

According to official figures, Camp Lee was, with one exception, the costliest of the war cantonments projects. More than \$18,670,000 was spent on the Virginia training center, \$13,846,000 at Center, \$11,296,000 at Dodge, \$13,545,000 at Dix, \$12,745,000 at Pike and \$9,880,000 at Travis. Camp Knox at Sittston, Ky., holds the high record in cost, \$18,733,189 having been paid, according to war department records, for its construction.

The projects, contractors and sums involved in the six suits were: Camp Travis, San Antonio, Tex., Lee Petersburg, Kan., Rhinehart & Dennis, Inc., \$7,000,000; Camp Custer, Battle Creek, Mich., Porter Bros., \$5,000,000; Camp Pike, Little Rock, Ark., James Stewart & Co., Inc., \$3,000,000; Camp Dodge, Des Moines, Ia., Charles Weitz Sons \$4,500,000, and Camp Dix, Wrightstown, N. J., Irwin & Leighton, \$6,500,000.

Power belts, such as are used in workshops for transmitting power from a revolving shaft to a machine, have been run at a rate of nearly 5,000 feet per minute, but in practice it is seldom an advantage to run them over 4,000 feet per minute.

PUNATIVE DAMAGE ARE ASKED FOR AUTO CRASH

Suit Filed In Circuit Court By A. T. Kline; Fred Cool Charged With Bad Driving.

One of the first cases on record here where punitive damages have been asked in addition to actual damages as the result of an automobile accident, was filed in the circuit court Monday by A. T. Kline against Fred Cool. A total of \$1950 of which \$1,000 is punitive, is asked against Cool. In an action in the justice court Monday Cool was convicted of reckless driving and fined \$25 and \$31.50 costs. He has appealed the case to the circuit court. The suits are the outgrowth of an accident on the Pacific Highway south of Canby November 10.

Following his announcement that traffic offenses would meet no light treatment at his hands, Judge E. J. Noble in the justice court Monday sentenced W. C. Stuart to five days in jail, suspended his license for six months and fined him \$10 and costs for speeding. Stuart had been arrested by Traffic Officer Carl Long.

G. G. Huff, driver for the Union Oil company, arrested by Long for parking on the wrong side of the street was fined \$10 and costs.

Paul Muras, charged with the illegal manufacture of liquor was given a preliminary hearing in the justice court, pleaded not guilty, and is being held in default of \$1000 bail.

G. W. Carlson, of Colton, arrested by Long for being drunk at the Oglesby dance hall at Meadow brook was fined \$20.

THREE KILLED IN FIRE IN HOTEL IN PORTLAND

Ben Hur Lodging House Is Engulfed in Flames After Explosion in Engine Room.

PORTLAND, Dec. 1.—Three lives were forfeited, 50 others were endangered and property loss estimated at \$40,000 resulted early today when fire gutted the old three-story frame building near Park and Oak streets, occupied by the Ben Hur lodging house. The three men who met death were lodgers and succumbed to smoke and flame inhalations. Their bodies were identified at the morgue.

The dead: J. J. McDonald, white, age and connections not known.

Christosomo Madarang, Filipino, bus boy at Imperial hotel.

Tomas Carino, Filipino, same employment.

Of the estimated property loss, \$30,000 represents damage to a stock of furniture in a store on the ground floor and \$10,000 to building and the furniture of the lodging house on the two upper floors.

The flames broke out about 3 o'clock, almost immediately after an explosion in the furnace room. By the efforts of firemen, more than 50 roomers were rescued from the burning building, many of them carried down ladders from the upper stories.

The building was a relic of old days. It stood directly across from the Telephone building. It extended entirely through the block to Ankeny street. The lodging house was frequented most by transients.

The wooden structure offered ready fuel to the fire, which leaped up in crackling sheets and burned so quickly that occupants had little time to gather their belongings.

The first floor of the building was occupied as a furniture store, the stock being owned by Cohn & Director. All the goods were either destroyed by fire or practically ruined by water. The stock represented what was saved two years ago from the fire at the Melor & Frank warehouse at Broadway and Taylor street.

Captain Roberts of the fire marshal's office estimated the loss to the furniture was only half covered by insurance.

HOLIDAY SPREE FINDS 2 IN MUNICIPAL COURT

The holiday spirit may perchance be allowable, but holiday spirits do not mix with gasoline, Recorder C. W. Kelly decided in municipal court yesterday. "Red" Carson and M. "Stiffy" Hamilton were taken into custody by night officer Jerry Hemmingsway on Thanksgiving day. Hamilton was fined \$100 for operating a car while intoxicated and \$50 on charges of being drunk and disorderly. He is still facing a charge of transporting liquor. Carson was fined \$50 for being drunk and disorderly.

Hemmingsway arrested Joe Murphy on a warrant charging him with disturbing the peace. He was wanted in connection with a disturbance a month ago at the Star cafe. Murphy, who is being held at Chief May's hotel will appear for trial at 2 o'clock today.

RECORDER'S RACE AT ESTACADA IS TO BE CONTESTED

F. Bartholomew Claims Vote Not Properly Handled; Election of J. K. Ely Said Illegal; Charges are Made.

DENIAL OF BALLOT TO TWO PEOPLE IS CITED

Failure of Candidate to File Election Expenses Is Held Violation of State Statute.

A contest over the city recorder election in Estacada was filed in the circuit court Friday by F. C. Bartholomew against J. K. Ely. Certain illegal practices in the holding of the election are charged.

According to the official count Ely and Bartholomew tried for the position. J. P. Woodie, justice of the peace there, was also a candidate for the recordership. After considerable contention, lots were drawn and Ely was officially declared elected.

Bartholomew charges that the failure of the judges of election to announce the closing of the polls half an hour before the time, as required in the charter, prevented votes being cast for him. He charges further that George Jack and Clara Nelson voted for Ely and that their votes were not legal for the reason that they had not been residents of Estacada for the required length of time.

Permission to vote was refused Bertie Rhodes and Josephine R. Elmerson by the judges, Bartholomew claims, and that these votes would have been cast in his favor. He also charges that the list of those voting includes the name of Nellie Hayman, and that the woman did not cast her ballot on the city election and that she was given no city ballot by the judges.

Bartholomew maintains that the ballot did not contain his name although he was formally nominated and that the recorder failed to notify him to appear and accept the nomination as was done in the case of other candidates for the office. He states in the petition that Ely has failed to file his certificate of expenses as required under the corrupt practice act.

H E the American Minister To Siam Sees Phra Kathin

There is more than one wrinkle to being the king of Siam, E. E. Brodie, publisher of The Enterprise, serving as minister of the United States to the land of Chang and Eng recently witnessed one of them, the Phra Kathin, whatever that may be. The account of the ceremonial appeared in the Bangkok Siam Times, of October 14. It follows:

Yesterday thousands of people flocked to the vicinity of Banua Chammra Palace to witness the Phra Kathin ceremony. It was impossible to drive or walk along the main roads leading to the Grand Palace at three o'clock. Assembled on the lawns in front of the War Office were H. E. the British Minister and Mrs. Greg; H. E. the American Minister and Mrs. Brodie; H. E. the Netherlands Minister; H. E. the Danish Minister; H. E. the Belgian Minister; Major Desgruelles, and others.

At about half past three the procession from the palace to Wat Rajapabith commenced. It must have been over a mile long. All the sections of the Army were represented. His Majesty the King, carried on a palanquin borne by about twenty bearers, was in military uniform. All along the route he acknowledged the homage of his people, and very graciously smiled and bowed to the salutations of those assembled outside the War Office. Arriving at the temple the King entered and presented the Kathin gifts to the priests. That done the procession wended still further on its way and His Majesty performed similar rites at the Phra Jetubon monastery.

Paul Muras Given Six Months In Jail For Moonshining

Paul Muras, arrested on charges of manufacturing liquor was convicted in the justice court Tuesday and sentenced to serve six months in jail and pay \$500 fine and the costs of the action. Muras was arrested when a complete still was found in a dug-out beneath his house, the entrance to which was concealed under the dining room carpet. It is expected that the case will be appealed.

COMPENSATION LAW TO BE CENTER OF BATTLE

Attack of Statute at Next Legislative Session Is Now Seen; Hot Fight Looms.

SALEM, Nov. 30.—Forces antagonistic to the Oregon compensation act are busily engaged in organizing their line of battle preparatory to launching their fight in the forthcoming legislative session, according to reports reaching Salem. A bill, said to be designed at ripping the Oregon act wide open, is now in course of preparation and a powerful lobby, it is understood, will be on hand when the lawmakers meet to back up the demands of private insurance interests which are not at all pleased with the exclusive feature of the present law.

Prediction is being made by those in fairly close touch with the situation that the compensation law will be one of the storm centers of the legislative session, as those who seek to change the present compensation system are very determined about the matter.

On the other hand, the friends of the law are equally determined to permit no mutilation of the act which has operated so successfully in this state for the past eight years and which is now being held up as a model in other states.

According to information reaching the state capital, D. H. Moore of the Shevlin-Hixon company of Bend, which has rejected the compensation law; Paul Quick, safety engineer for the Coos Bay Lumber company, and A. W. Cooper, secretary of the Western Pine association, are taking the active lead of a group of dissatisfied employers in organizing a movement to amend the compensation law. It is said they are working in cooperation with certain casualty interests which have persistently attacked the law since its enactment.

These interests, it is said, want the compensation law so amended that employers may carry their own compensation insurance under a self-insurance plan and so casualty insurance companies may write compensation insurance.

Under the present law neither self insurance nor casualty insurance is permitted, but rather the compensation insurance fund is administered by the state through the state industrial accident commission. It is not now a money making scheme but is a law which provides absolute insurance protection for the employer and at the same time is humane in its provisions for the injured worker and his family.

It is also probable that an amendment will be offered to make the compensation law compulsory upon all hazardous employments. It will be recalled that at the last annual convention of the Oregon State Federation of Labor a resolution in favor of a compulsory law was adopted.

EXPERIMENTAL FIRE IS AID IN INVESTIGATION

Trial Under Ideal Condition Convinces Sheriff Wilson Few Start By Cigarettes.

Fire of paradoxical origin, started in the county court house Tuesday afternoon. The blaze, which almost materialized, was of both natural and incendiary origin.

The attempt to "set" the fire was made by Sheriff W. J. Wilson as an experiment touching upon the many fires which have occurred in Oregon City during the past year.

Practically ideal conditions for natural origin of a fire were created. A newspaper was crumpled up and thrown on the floor of the office. A cigarette was lighted just right and was placed between the sheets of crumpled paper. Then the sheriff took out his watch.

For twenty-five minutes the newspaper smoldered. A thin film of smoke arose. Then the fire went out. The cigarette had burned steadily under the slight draft, and had burned up completely without setting the paper afire.

The little experiment indicates, the sheriff says, that it is not so easy to start a blaze after all. He does not intend to disprove the theory that a cigarette both can and often will start a fire, but claims that it demonstrates that natural causes are probably not responsible for the blazes in Oregon City which have occurred with such frequency.

Local and state authorities are making a complete investigation of the fires which have caused more than \$350,000 damage here. No indications as to the progress of the investigations are made.

ENDORSEMENT OF COUNTY AGENT IS GIVEN BY WIRES

Inclusion of Appropriation In Budget For Next Year Is Endorsed At Meeting Here: Farm Bureau Men Speak.

LECTURE ON SAFETY MOVEMENT IS HEARD

H. H. Herdman Tells of Work Of National Council For Prevention of Accidents.

Endorsement of the inclusion of an appropriation in the county budget for the support of the county agent and the agricultural work in the county, was given by the Live Wires of the local commercial club at their session Tuesday noon. H. H. Chindgren and Martin Stuber, representing the Clackamas County Farm Bureau federation appeared before the meeting and asked the endorsement of the Wires for the appropriation for both the county agent and an assistant. Chindgren described the work that is being done by the organization at present.

A committee composed of L. A. Henderson, O. D. Eby, and L. E. Jones was appointed to determine the arrangements in course of completion for the equipping of the rest rooms in the piers.

M. D. Latourette, chairman of the bridge dedication committee reported that the program was tentatively arranged to include the crowning of the queen, a band concert, parade, reception and dedication ceremony in the morning and a banquet in the afternoon.

H. H. Herdman, manager of the Oregon and Columbia division of the National Safety Council spoke upon the steps that are being taken for the reduction of loss of life through was itself. He stated that the country is laboring under the fallacy cited by Artemis Ward when he said that the people of this country "knew too many facts that aren't true." One of them, he declared is that accidents are not preventable.

Herdman described the means being taken to reach both adolescent and adult mind with the message of safety. The automobile today is the biggest public menace where life and limb are concerned. He urged personal cooperation with safety movements and individual care in matters which the average citizen was prone to overlook.

War Saving Stamps Mature January 1; Issue Convertible

War savings certificates, series of 1918, will mature January 1, 1923, and will be payable after that date at \$5.00 for each stamp affixed.

Owners of the 1918 war savings certificates may now apply to exchange the whole or a part of their certificates at maturity value for Treasury savings certificates to be dated January 1, 1923, with the difference either way to be paid in cash, or they may apply for full cash payment to be made at maturity. According to assistant postmaster Howell.

War savings certificates presented from now until the first of the year will be paid by check direct to the owner by the Branch of the Federal Reserve Bank at Portland, Oregon. Stamps presented after Dec. 31, 1922, will be cash direct through the Post Office but owners of certificates who desire payment promptly on the first of the year should present certificates now in order that payment can be made by the branch of the Federal Reserve Bank.

16 Arrests Made By Constable Fortune

A total of 16 arrests were made by Constable Ed. Fortune during the month of November according to his report for that period. Five were arrests for speeding, three for assault and battery, three for larceny, two for failure to report accidents, two for non support and one for larceny by bailie.

Roake Foundry Casts Span Lamp Bases

The contract for the castings of the bronze lamps for the new bridge has been secured by the Roake Foundry. This work is one of the few jobs on the new bridge turned out by a local concern.

SURFACING OF MT HOOD LOOP TO BE ADVERTISED

State Highway Commission To Open Bids on Sandy Section at Meeting Dec. 13.

Surfacing of the Cherryville section of the Mamas county highway advertised for bids by the state highway commission at Salem. The bids will be opened at a meeting of the commission December 13. The work includes 7.4 miles of crushed rock or gravel surfacing.

The state commission has completed the figures upon the cost of construction of the south end road under the revised estimates, according to the word received by H. S. Mount, chairman of the street committee.

The estimate calls for the expenditure of \$79,404 from Fifth street and Railroad avenue to the south city limits.

Cost of the construction of the highway from Fifth street to Seventh street parallel to Railroad avenue is placed at \$13,150 making the amount necessary for the city to expend in the improvement \$92,554. This is exclusive of the amount it will be necessary to expend in condemning property along Railroad avenue to allow the improvement to be made.

Outside the city limits the cost of the highway to the point where it connects with the road already constructed is placed at \$49,670. This latter amount will be borne by the highway commission.

\$12,000 IS INVOLVED IN CIRCUIT COURT SUITS

Six Actions Are Begun To Collect On Notes Or To Force Contract Completion.

Six suits to collect wither upon promissory notes or contracts were filed in the circuit court Wednesday involving a total of more than \$12,000.

Suit for \$6,000 alleged due on a contract for sale of real estate was filed by John and Marie Lundgren against Harry R. Warden. Suit for \$3389.30 alleged due on a promissory note was filed against the Palmer Construction Company by Exile Burki. E. J. Chapman filed suit against A. I. and J. Hughes for \$277.50 charging that the defendants had made misrepresentations in sale of certain livestock.

W. J. Pizer et al. proprietors until a few days ago of the Paramount restaurant were sued for \$539.29 on a promissory note given to O. A. Cheney, local grocer. Suit for \$1800 to collect a promissory note was filed by D. A. Neff against Levi M. Lowry. The Credit Service corporation represented three wholesale concerns filed suit for a total of \$417.45 against W. F. Haberlach.

A judgment for \$365.25 was won in the circuit court by R. De Neul against Rosa Rieder.

Articles of incorporation of the Calgary Community Church have been filed with the county clerk. The church is located at Lake Grove and the board named in the incorporation is composed of R. L. Edwards, Jessie MacGregor and E. A. Witherside.

Certificate of assumed name was filed by the Spring Station Garage, operated by G. H. Bruckman and Charles Hagan, both of Milwaukie. The garage is located on the 82nd street road at the Southern Pacific crossing.

Marriage licenses: Leo R. Shindler and Mary B. Miller, Milwaukie. Vincent H. Riede and Anna Miller, Milwaukie. Richard Johnston and Emma Erlich, Clackamas. Lester A. Will and Elizabeth Schlenheinz, Hubbard.

Divorces granted: Una M. against L. E. Belfis, Paloma against Henry Heynemann, Oda against P. W. Jones, Elizabeth R. against Leonard E. Slider divorce J. H. against Helen W. Dailey, Charity against J. H. Broyles, Chris R. against Emma Battalion, George against Rosa H. McKiligan, Andrew against Ida E. Emma Battalion, George against Rosa Hedlund, Alice M. against Stephen I. Fraser and Al against Fannie Schlossberg.

Weather In Calgary Now 15 Below Zero

Ralph and Ray Humphreys, who have spent the summer and fall on their farm at Calgary, Alberta, Canada, have returned to their home at Mount Pleasant. They are sons of Mr. and Mrs. George Humphreys, of that place, and have been harvesting the crops. These were a failure, owing to continued dry weather last summer. Besides owning a large wheat ranch, the Humphreys family own a stock ranch at Calgary. When leaving for Oregon the Humphreys boys say the thermometer registered 15 degrees below zero.

ADJUSTMENT OF FARMS AND LABOR IS DECLARED NEED

Thomas F. Ryan, President of Bank of Commerce Is Back From 18th Trans-Continent Trip; Many Cities Visited.

GENERAL PROSPERITY OVER EAST IS FOUND

Plenty Of Capital Is Available For Investment Says Local Man; Optimism Is General

When the farmer and the laborer come together upon the matter of wages and not until then, will the solution of the greatest present national economic problem be in sight, in the opinion of Thomas F. Ryan, president of the Bank of Commerce, who has just returned from his 18th transcontinental trip.

The return of agriculture to a sound basis is the big question of the day, Judge Ryan believes, and the key to the situation is the adjustment of labor. The laborer believes that his work is worth \$4.50 a day. The farmer can only afford to pay \$2.25. It is the equalization of their positions that holds the answer, he declares.

In his trip throughout the east, Judge Ryan visited Richmond, Baltimore, Washington, Philadelphia, New York, Hartford, Providence, Boston, Lowell, Albany, Cleveland, Chicago, Milwaukee, St. Louis, Kansas City and Denver. He visited ten federal reserve banks and numerous private financial institutions.

Prosperity Forecasted "Financiers throughout the east are confident that the immediate future holds from one and a half to three years of prosperity for the country. Though there are some few who are pessimistic, many cannot see any reason why continued industrial and financial prosperity should not prevail. Judge Ryan said yesterday, "Only the readjustment of the farming condition and the restoring of the farmer to the position of a potential buyer remains. More than the question of taxation, I found that the labor situation is what is the difficulty. The farmers cannot afford to pay the present prices for labor and sell their produce at the going market rates."

The local banker found that living conditions throughout the far east are exceptionally good though the average wage earner seems perfectly willing to pay high prices. Illustrative of the lack of understanding between the laborer and the farmer he points out that in New England, steak is selling for ordinary cuts, at between 60 and 75 cents a pound. Through the middle west a two year old steer brings only \$20. The laborer, he says, feels that the big return for the retail commodity is going to the farmer, when check of conditions actually shows that it is not.

Labor generally, Judge Ryan declares, feels that the condition of the farmer can be remedied by legislation but the financiers concede that the matter is one so fundamental that laws will not change it. Some feel that within ten years the government will practically own all of the land. Others believe that the condition will be met by a bonus for the farmers, or a subsidy under which the government would practically control agriculture as an essential industry similar to coal production. The adjustment of the condition, the judge says, is regarded as vital to protect the necessary food producing power of the nation.

The labor condition as it affects the farms, has made many of the farmers feel that restricted immigration is undesirable, the local banker found. They believe that the admission of more immigrants is the method of securing cheaper labor for the agricultural regions.

Money Said Plentiful As the financial outlook itself is concerned, Judge Ryan declared that money is plentiful throughout the east and that there is plenty of capital available for investment. The bankers are expecting a decline in the current interest rate which is at present six per cent.

In spite of the general industrial prosperity, there is little disposition on the part of the laboring classes to save. Living is both high and more extravagant than in former years, he declared. The tendency of the laborer to fall to build for the future is attributed to some extent to the tendency on the part of large corporations to provide insurance for their men, the amounts increasing with the period of service, and to provide for pensions. This he said, is decreasing the labor turn over and somewhat stabilizing the basis of employment. "I checked up carefully on the living costs throughout the New England states," Ryan said, "I was greatly surprised to find that fully sixty per cent of the eggs consumed in New England are laid in California. And (Continued on page five.)